

Court No. - 3

Case :- WRIT - C No. - 27264 of 2016

Petitioner :- Ajay Kasana

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Hanuman Prasad Dube

Counsel for Respondent :- C.S.C., Chandan Agarwal

Hon'ble Krishna Murari,J.

Hon'ble Prashant Kumar,J.

Put up as fresh on 14.7.2016, by which time Sri Chandan Agarwal, who has accepted notice on behalf of respondent, shall obtain instruction particularly in respect of the provisional assessment. Till then, no coercive steps shall be taken against the petitioner nor electricity connection shall be disconnected in pursuance of the impugned recovery.

Order Date :- 31.5.2016

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Hon'ble Krishna Murari, J.

Hon'ble Arvind Kumar Mishra-I, J.

Heard learned counsel for the petitioner, learned Standing counsel for the State respondents and Sri Chandan Agarwal appearing for respondents no. 2 & 3.

By means of this petition filed under Article 226 of the Constitution of India, petitioner has prayed for quashing of the impugned recovery certificate dated 2.05.2016 issued by the respondent no. 3.

When the matter was taken up as fresh on 31.5.2016, the Court passed the following order :

"Put up as fresh on 14.7.2016, by which time Sri Chandan Agarwal, who has accepted notice on behalf of respondent, shall obtain instruction particularly in respect of the provisional assessment. Till then, no coercive steps shall be taken against the petitioner nor electricity connection shall be disconnected in pursuance of the impugned recovery. "

Today when the case called out, a copy of provisional assessment has been filed by Sri Chandan Agarwal, learned counsel for respondents no. 2 & 3, which is taken on record. From a perusal of provisional assessment, it appears that the provisional assessment has been made without fixing the date of hearing, and without issuing any notice.

In the absence of notice and opportunity of hearing before making provisional assessment in compliance of the provisions contained under clause 6.8(b) of the U.P. Electricity Supply Code, 2005, which is mandatory, the impugned recovery certificate dated 2.05.2016 (annexure-1 to the writ petition) issued by the respondent no. 3 is not liable to be sustained and is hereby quashed.

Writ petition stands allowed. It shall be open to the respondents to make a fresh assessment after following the procedure prescribed.

However, there shall be no order as to costs.

Order Date :- 15.7.2016

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